

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Estonia

Organization or entity responsible for the preparation of the report: Ministry of Education and Research

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☒ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☒ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

With referral to information made available in Estonia's previous report, according to the [Constitution of the Republic of Estonia Article 37](#), everyone has the right to education. Education for school-age children is compulsory to the extent specified by the law and is free of charge in general schools established by the national government and by local authorities. To make education accessible, the national government and local authorities maintain a requisite number of educational institutions. Other educational institutions, including private schools, may also be established, and maintained pursuant to the law. Parents have the deciding say in the choice of education for their children. Everyone has the right to be taught in Estonian. The language of teaching in national minority educational institutions is chosen by the educational institution. Article 12 provides that everyone is equal before the law. No one may be discriminated against based on nationality, race, colour, sex, language, origin, religion, political or other views, property or social status, or on other grounds. Incitement to ethnic, racial, religious, or political hatred, violence or discrimination is prohibited and punishable by law. Incitement to hatred and violence between social classes or to discrimination against a social class is also prohibited and punishable by law.

<https://www.riigiteataja.ee/en/eli/530102013003/consolide>

<https://www.hm.ee/en/activities/legislative-drafting>

<https://volinik.ee/en/sul-on-mure/public-sector-representative/haridus-avs-en/>

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

Republic of Estonia Education Act: The purpose of the Education Act is to provide legal basis for the formation, functioning and development of the education system.

Equal Treatment Act: The purpose of this Act is to ensure the protection of persons against discrimination on grounds of nationality (ethnic origin), race, colour, religion or other beliefs, age, disability or sexual orientation.

Gender Equality Act: The purpose of this Act is to ensure equal treatment of men and women as provided for in the Constitution of the Republic of Estonia and to promote equality of men and women as a fundamental human right and for the public good in all areas of social life.

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

[Report on human rights and human rights' values in Estonian school and in education policy](#)
(2017, English summary pp 76-79)

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

With referral to the 9th Estonian report, The right to acquire education is guaranteed by the Education Act, the Pre-school Child Care Institutions Act, the Basic Schools and Upper Secondary Schools Act, the Private Schools Act, the Vocational Educational Institutions Act, the Institutions of Professional Higher Education Act and the Universities Act.

Equal opportunities exist for acquiring basic, secondary, vocational and higher education as well as participating in hobby education. Under the Education Act, basic education (grades 1-9) is compulsory for school-age children. Obligation to attend school also applies to children of foreign citizens and people with undetermined citizenship residing in Estonia.

Under the [Equal Treatment Act](#), upon determination of the content of instruction and organisation of instruction educational and research institutions and other agencies and persons organising training shall take account of the need to promote the principle of equal treatment.

In addition, the [Equal Treatment Act](#) prohibits discrimination of persons on the grounds of nationality (ethnic origin), race or colour in relation to education and access to vocational guidance, vocational training, advanced vocational training and retraining, including practical work experience. The Act also establishes prohibition of discrimination on the grounds of religion or other beliefs, age, disability or sexual orientation in relation to access to vocational guidance, vocational training, advanced vocational training and retraining, including practical work experience.

Under the [Gender Equality Act](#), educational and research institutions and institutions engaged in the organisation of training shall ensure equal treatment for men and women upon vocational guidance, acquisition of education, professional and vocational development and re-training. The curricula, study material used and research conducted shall facilitate abolishing unequal treatment of men and women and promote equality.

Last, the [Basic Schools and Upper Secondary Schools Act](#):

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

§6, art. 1 states the following: “Upon organisation of studies, the state, owners of schools and schools adhere to the following principles:

- 1) general education of good quality adheres to the principles of inclusive education and is equally available to all persons regardless of their social and economic background, nationality, gender, place of residence or special educational needs”;

§ 27, articles 1-3 state:

(1) A basic school is required to admit all persons subject to the duty to attend school who have expressed such desire and for whom the school is the school of residence. Parents are free to choose a school for a person subject to the duty to attend school, where the desired school has vacant student places.

(3) The prerequisite for admission to an upper secondary school is the basic education or respective education acquired in a foreign country. Everyone has equal right to compete for admission to an upper secondary school. Upon admission to an upper secondary school, the knowledge and skills of a person may be assessed, but the admission criteria must be based on objective and previously disclosed criteria.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|---|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☒ Providing language classes to newcomers (e.g. refugees) |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☒ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☐ Other: | ☒ Combatting stereotyping and stigmatisation |

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

The indicated measures taken are covered in and in accordance with the [Estonian Lifelong Learning Strategy 2020](#).

Providing financial incentives and fellowships: this is regulated by the [Study Allowances and Study Loans Act](#), which “provides the bases, conditions and procedure for the grant of study allowances and study loans in order to ensure access to vocational education and higher education and motivate pupils completing vocational education (hereinafter pupils) and students acquiring higher education (hereinafter students) to study full time and successfully and to complete the curriculum in the nominal period.” Additionally, family allowances, of which families with underage children benefit, are regulated under the [Family Benefits Act](#).

Ensuring inclusion in mainstream schools for all learners: A regular school organises study of students with special educational needs, like that of all other students, according to the [Basic Schools and Upper Secondary Schools Act](#) and the [Education Act](#). Every child has the right to study at a school of residence and according to a suitable curriculum and receive support arising from the special educational need. In general, children with special educational needs study in ordinary classes of ordinary schools. In case teaching of students with special needs requires, due to their disability or disorder, a very specific organisation of studies and implementation of resource intensive support measures, an ordinary school may open a class for students with special needs.

A need for enhanced support and special support is assessed by an external advisory team. As a result of the assessment, the advisory team provides recommendations for the support of the development of the child and organisation of studies and education.

According to the recommendation of the external advisory team and with the written parental consent, the school provides the student with enhanced support or special support, studies at home for health reasons, non-stationary studies with regard to the student who is under the obligation to attend school, reduces and replaces the learning outcomes provided for in the national curriculum in one or more subjects, recommends the application of studies for students with mild learning difficulties, students with moderate learning difficulties and students with severe and profound learning difficulties, or releases the student from having to study a mandatory subject.

Enhanced support is applied to a student who, due to their permanent learning difficulty or psychical or behavioural disorder or another health condition or disability, needs a constant support specialist service and an individual curriculum in one, more or all subjects, or part-time studies individually or in a group, or individual support during studies in the class, or studies in a special class.

Special support is applied to a student who, due to their severe and permanent mental disorder, intellectual or mental disability or multiple disabilities needs disability-specific organisation of studies, study environment, study methodology, study aids and a constant support specialist service combined with social or health services or both in order to be able to participate in studies; part-time studies individually or in a group or constant individual support in a class or studies in a special class.

In vocational educational institutions the school, along with the manager of the school, ensures a student with special needs with an access to support services, remedial instruction, special education teacher, social educator and psychologist services; and the school can apply the following support measures in support of the student:

- drawing up and implementing an individual curriculum;
- studies in small groups;
- a moderate or deep pedagogical intervention;
- use of a sign-language interpreter.

A school appoints an employee or a support group that is responsible for the identification of the special need of the student, assessment of the competencies and needs of the student, specifying and application of the required support measures, monitoring the effectiveness of such measures, and coordination of these activities.

Support specialists, incl. speech specialists, special education teachers, psychologists or social educators, support the development of a student and the pursuit of studies that correspond to the student's abilities and social skills.

A support specialist:

- cooperates with other support specialists for identifying the student's needs for aid and support, and assesses, based on the competencies of the specialty, the student's development and coping in study environment;
- advises and supports the teacher in planning and conducting the student's study and development activities, finding a study methodology and study form suitable for the student, selecting and adjusting suitable learning materials and aids, and drawing up an individual plan for organisation of studies or curriculum;
- supports and guides a student in solving problems that have emerged, plans and conducts interventions arising from the special educational needs of the student and activities supporting the student's development, coping and social capability individually or in a group, and assesses the effectiveness of the applied measures;
- in cooperation with other support specialists, advises school management, teachers and staff in organising the study of students with special educational needs, designing a development and study environment based on the needs of the student, and selecting the measures suitable for supporting the student;
- advises, within his or her professional competencies, the parents and family in issues related to supporting a child's development and coping;
- cooperates, where required, with medical, rehabilitation, social care, etc. specialists for providing the child with the required support.

Source: https://eacea.ec.europa.eu/national-policies/eurydice/content/special-education-needs-provision-within-mainstream-education-20_en

Training teachers on inclusive education: Teacher training curricula are drawn up on the basis of the Universities Act, the Standard of Higher Education and the Framework Requirements for Teacher Training. According to the higher education standard, the objectives and learning outcomes of higher education curricula must correspond to the requirements and tendencies of international legislation governing the respective profession and if a occupational standard exists, take account of the acquisition and implementation of the knowledge and skills described in it.

Occupational standard is a document that describes a job and provides a list of skills, knowledge and attitudes, i.e. competence requirements, necessary for successful performance of work. Competencies described in the occupational standards for teachers, special education teachers and vocational teachers are taken as starting points in the development of teacher training curricula.

The occupational standards for teachers at level six and seven specify six compulsory competencies:

- supporting learners;
- planning of learning and teaching;
- teaching;
- reflection and professional development;
- cooperation and supervision;
- development, creation and research.

Level 6 and 7 of the occupational standard for teachers specify the following optional competencies:

- supporting learners with special educational needs;
- implementation of digital education.

Each competency has been described through activity indicators.

There are 11 competencies related to the job described through activity indicators.

Occupational standard for preschool child care institution teachers is at the sixth professional level. The structure of this standard is similar to that of teachers and is based on the specifics of the job of the teacher of preschool child care institution.

The main activity of a special education teacher is supporting and directing students with special educational needs in cooperation with other specialists. The standard at the seventh professional level that forms the basis for the special education curriculum includes seven compulsory competencies.

The compulsory competencies include:

- noticing and evaluating the special educational needs of a learner;
- planning teaching activities;
- developing learning environment;
- teaching;
- special education counselling and mentorship;
- professional development;
- development, creation and research in the field of special education.

Optional competencies include:

- management;
- special education training and supervising.

There are 10 competencies included in the profession of a special education teacher and these have been worded in a way similar to those included in the profession of a teacher.

A vocational teacher teaches speciality subjects in a vocational school and the requirements for his or her training and qualifications are lower than the requirements for teachers of general education subjects.

The occupational standard for vocational teachers differentiates between three levels of qualification for vocational teachers. A vocational teacher teaching only practical vocational skills and instructing practical lessons is not required to have obtained higher education.

The occupational standards of vocational teachers describe, in addition to general knowledge and skills, also the seven competencies necessary for performing required tasks:

- planning the process of study;
- forming the environment of study;
- supporting learning and the development of learners;
- reflexion and individual professional development;
- developing specialty studies;
- promoting the image of vocational training;
- developing organisational culture.

The vocational teacher level 7 includes also “supporting colleagues” as an additional compulsory competence.

The occupational standard of vocational teachers includes four optional competencies:

- organising practical training;
- management and leadership;
- performing adult continuing education;
- supporting learners with special educational needs in the process of study.

The vocational teacher level 6 includes also “supporting colleagues” as an additional optional competence.

The occupational standards for teachers have been developed in the framework of the Estonian vocational system providing description of levels that comply with those specified in the European qualification framework.

(Source: https://eacea.ec.europa.eu/national-policies/eurydice/content/initial-education-teachers-working-early-childhood-and-school-education-23_en)

Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET):

In Estonia, there are various initiatives by private and third sector actors, as well as state-initiated activities to increase girls’ interest towards ICT. As all of these initiatives are recent, their impact is yet to be evaluated. These initiatives include HK Unicorn Squad (developed as a private initiative), aiming to increase girls’ (aged 7-14) interest towards technical fields, robotics and STEM fields; Tech Sisters (third sector initiative), aiming to increase girls’ and womens’ interest towards IT and technology; Digigirls, developed for girls (grades 7-12), is a series of events, mostly as workshops, to introduce ICT fields, designing apps, web environments etc; and StartIT (an initiative of the Ministry of Economic Affairs and Communications, to encourage girls and young women to study and work in IT fields. Several general state-initiated awareness-raising programmes have also been initiated.

Providing auxiliary assistance : Special education may be considered appropriate with children who need very specific organisation of studies and implementation of resource-intensive support measures.

The following special groups may be formed in preschool child care institutions for children with special developmental needs:

- groups for children with physical disabilities;
- groups for children with specific developmental disorders;
- groups for children with moderate, severe and profound mental disabilities;
- groups for children with multiple disabilities;
- groups for children with pervasive developmental disorders.

In order to achieve the goals formulated in the student's curriculum and provide the student with the required support, study assistance or level-based groups or special classes may be formed in addition to ordinary classes. Studies in a study assistance group, level-based group or special class must be reasoned based on the needs of the student and limited in terms of the time, and attention must be paid to the recommendations of the coordinator of the studies of the student with special needs or those of the external advisory team or both. Upon teaching a student who needs special support in an ordinary class, the recommendations of the external advisory team must be taken into account. The head of school decides the admission to a study assistance or level-based group or special class.

For a student who, due to severe or persistent mental disorder, has been referred to a long-term rehabilitation service, one-to-one teaching can be applied. Although in some cases the application of one-to-one teaching is the only option, it must be used for the minimum time needed. In any event, it is important to try, if possible, to involve the student in the work of a smaller group and also in the lessons of an ordinary class.

(Source: https://eacea.ec.europa.eu/national-policies/eurydice/content/separate-special-education-needs-provision-early-childhood-and-school-education-20_en)

Adapting education infrastructure, eliminating administrative barriers to education:

The state runs schools for students with visual, hearing or speech impairment, mobility disability (coupled with an educational special need), multiple disabilities, intellectual disability, emotional and behavioural disorders as well as for students with chronic somatic illnesses who need special educational attention. Additionally, as part of the Equal opportunities and increased participation goal in lifelong learning, part of the [Estonian Lifelong Learning Strategy 2020](#) (page 15), Estonia implemented [principles of inclusive education in general education during 2014-2020](#), which involved financial measures to enhance inclusion of students with special educational needs in general education.

Adapting curricula and methods, providing flexible learning pathways:

Teaching and schooling in preschool childcare institutions is based on the national curriculum for pre-school child-care institutions. Children have the right to get assistance from teachers in acquiring the content determined by the curricula. The principles and arrangement of supporting students with special needs are established in the curriculum of a child-care institution.

In basic schools the national curriculum for basic schools and in upper secondary schools the national curriculum for upper secondary schools apply to all students (incl. those with special educational needs) as a general framework curriculum. In addition, a regulation of the Government of the Republic has approved the simplified national curriculum for basic schools, which provides the standard of basic education for students with intellectual disability who, by a recommendation of the external advisory team and with the approval of a parent, study pursuant to the simplified national curriculum for basic schools, in classes for students with moderate learning difficulties or in classes of students with severe or profound learning difficulties acquiring basic education.

When teaching a student, a school may change or adjust the time, contents, process and environment of study. Where the changes or adjustments substantially increase or decrease the weekly workload or intensity of studies in comparison with the school curriculum or reduce or replace the learning outcomes provided for in the national curricula, an individual curriculum shall be drawn up for the student.

Where the individual curriculum drawn up for a student with special educational needs provides for reduction or replacement of the learning outcomes set out in the national

curriculum or the release from learning a compulsory subject, the individual curriculum may be implemented on the basis of a recommendation of the external advisory team.

For all students with moderate learning difficulties and students with severe and profound learning difficulties, an individual curriculum is compiled to take into account their abilities and developmental potential.

The national curriculum for basic schools provides for the cases where a school has the right to implement exceptions for supporting a student's individual development as follows:

- with students with mobility disability, in basic school a nominal period of study of 10 years may be provided for on the basis of a school curriculum or an individual curriculum.
- with students with speech impairments, in basic school a nominal period of study of 10 years may be provided for on the basis of a school curriculum or an individual curriculum, study load for language and literature studies may be increased and foreign language B dropped.
- with students with hearing impairments, in basic school a nominal period of study of 11 years may be provided for on the basis of a school curriculum or an individual curriculum, study load for language and literature studies may be increased and the second (B) foreign language dropped. The additional language classes may be replaced by sign language courses.
- with students with visual impairments, in basic school a nominal period of study of 10 years may be provided for on the basis of a school curriculum or an individual curriculum, and study load for technology studies may be increased.

Additional studies may be offered to the students who have graduated from basic school under the simplified national curriculum for basic schools and the students who have graduated from basic school under the national curriculum for basic schools but, due to their special educational needs, need to be provided with additional preparation and support in order to continue with their studies or move to the labour market. Students who have obtained a basic school graduation certificate in the same year and who are not ready to continue their studies or enter the labour market or who were not admitted to the desired educational institution are admitted to additional studies. The duration of additional studies is one academic year.

Source: https://eacea.ec.europa.eu/national-policies/eurydice/content/separate-special-education-needs-provision-early-childhood-and-school-education-20_en

Providing language classes to newcomers (e.g. refugees)

The following support measures are implemented in preschool child-care institutions:

- individual development plan;
- speech therapeutic and special educational support;
- social pedagogical counselling;
- occupational therapy;
- remedial teaching of Estonian as a second language.

The following possibilities for support measures are implemented at schools:

- individual curriculum;
- study aid for offering special educational or speech therapeutic aid;
- studying in a longday group;
- home schooling for health reasons;
- boarding school facilities for students with social problems;
- help from a special education teacher;

- help from a psychologist.

The National Curriculum for Basic Schools establishes the exceptions that may be applied to students with special educational needs.

The following possibilities exist as additional possibilities and measures for the organisation of education of children whose mother tongue is other than Estonian:

- possibility to acquire basic education in the English language in two schools and in the Finnish language also in two schools;
- possibility to study mother tongue two hours per week if the mother tongue (home language) of a student is different than the language of instruction of the school and if there are more than 10 students wishing to study the language;
- possibility to study mother tongue as foreign language;
- implementation of individual curriculum (incl. teaching of Estonian individually or in a small group);
- teaching of Estonian (the official language), incl. in case the student studies at a school with Estonian as the language of instruction;
- studying Estonian free of charge for asylum seekers and refugees;
- a student whose mother tongue is other than Estonian or a student who has arrived from a foreign country and whose experience of learning in Estonian in basic schools is less than six academic years, may study Estonian as second language;
- a student who has lived in Estonia for less than three years has the right to give up studies of foreign language B;
- a student who has lived in Estonia up to three years and who is studying at an Estonian school in a class with Estonian as language of instruction or in a language immersion class, has the right for four Estonian language lessons per week;

Vocational educational institutions provide, if required, additional Estonian language training to the students whose mother tongue is other than Estonian.

Source: https://eacea.ec.europa.eu/national-policies/eurydice/content/support-measures-learners-early-childhood-and-school-education-20_en

Valuing diversity in schools, combatting stereotyping and stigmatisation:

Various activities have been initiated at different levels of the education, with the aim to enhance mutual understanding, increase tolerance and social cohesion. In the Estonia education system, no-one is discriminated on the basis of social, national, gender, or other criteria. The results of the OECD PISA tests confirm that the Estonian education does not discriminate students based on their socio-economic background and this background does not play a role in students' achievements at school.

Awareness and education on different identities, including, but not limited to sexual orientation, gender identity, and cultural differences (students with different first languages, roma students, etc) has been introduced to schools through different evidence-based programmes, such as KiVa Antibullying Program (introduced in 2017, renewed and updated in 2020), VEPA (internationally known as PAX Good Behavior Game), Hooliv klass (Caring Class) and other programmes. These programmes are based on intervention and are adopted by schools individually. Such programmes reach about 70% of Estonian schools and 80% of Estonian preschools. In cooperation with student representative boards, students have been given the opportunity, by way of different calls for proposals, to suggest activities which aim to increase mutual tolerance, mutual respect regardless of individual differences, and encourage an overall supportive environment in schools and in the community.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

[Family Law Act:](#)

§ 1. Prerequisites for contraction of marriage

(2) Only adults may get married.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

☐ Pre-primary education is free of charge for all: Please provide the duration:

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Basic education is minimum compulsory general education. All children who reach compulsory school age of seven by 1 October of the given year have to start school. Compulsory school attendance lasts until basic education is completed or the child reaches the minimum school leaving age of 17.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Basic Schools and Upper Secondary Schools Act

All persons residing in Estonia have the right and obligation to acquire basic education (grades 1-9) of education. Basic education is free of charge at municipal and state-owned schools.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Basic Schools and Upper Secondary Schools Act

According to the [Constitution of the Republic of Estonia](#), § 37. Everyone has the right to education. Education for school-age children is compulsory to the extent specified by the law, and is free of charge in general schools established by the national government and by local authorities.

- ☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☒ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Basic education is the minimum compulsory general education. All children who reach compulsory school age of seven by 1 October of the given year have to start school. Compulsory school attendance lasts until basic education (grade 9) is completed or the child reaches the minimum school leaving age of 17.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

§ 7, § 8 of the Employment Contracts Act:

§ 7. Entry into employment contract with minor

(1) An employer shall not enter into an employment contract with a minor under 15 years of age or a minor subject to the obligation to attend school, or allow such a minor to work, except in the cases provided for in subsection (4) of this section.

(2) An employer shall not enter into an employment contract with a minor or allow a minor to work if the work:

1) is beyond the minor's physical or psychological capacity;

2) is likely to harm the moral development of the minor;

3) involves risks which the minor cannot recognise or avoid owing to lack of experience or training;

4) is likely to hinder the minor's social development or the acquisition of his or her education;

5) is likely to harm the minor's health due to the nature of the work or the working environment.

(4) An employer may enter into an employment contract with a minor of 13–14 years of age or a minor of 15–16 years of age subject to the obligation to attend school and allow him or her to work if the duties are simple and do not require any major physical or mental effort (light work). Minors of 7–12 years of age are allowed to do light work in the field of culture, art, sports or advertising.

(5) The Government of the Republic shall establish by a regulation the types of light work which may be done by a minor.

(6) An employment contract entered into by violating the restrictions specified in this section is void.

§ 8. Consent for employment of minor

(1) An expression of will made by a minor for entry into an employment contract without the prior consent of a legal representative is void, unless the legal representative subsequently approves the expression of will.

(2) The legal representative of a minor may not consent to the employment during the school holiday of a minor subject to the obligation to attend school for more than a half of each term of the school holiday.

(3) In order to enter into an employment contract with a minor of 7–14 years of age, the employer shall apply for consent from the labour inspector of the place of business. In the application the employer shall indicate information about the working conditions of the minor, including the minor's place of work and duties, age and whether the minor is subject to the obligation to attend school.

(4) If the labour inspector verifies that the work is not prohibited for the minor and the minor's working conditions are in accordance with the requirements provided by law and the minor wishes to do the work, the labour inspector shall grant the employer the consent specified in subsection (3) of this section.

(5) If, in ascertaining the will of a minor of 7–12 years of age, the labour inspector has reasonable doubt that the minor is not expressing his or her true will in the presence of the legal representative, the labour inspector shall ascertain the will of the minor in the presence of the minor and a local child protection official.

(6) An employment contract which has been entered into with a minor without the consent specified in this section is void.

(7) An employer is prohibited from allowing a minor to work without the consent or approval of a legal representative.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

Since 2012/2013 academic year, higher education is free of charge in Estonia for those studying full-time and in Estonian.

New needs-based student support system was introduced at 2013/2014. Students from less privileged families can apply for study allowance (~ 75-220 EUR per month) when studying full-time and completing at least 75% of the curriculum.

Students who started their studies in 2012/2013 or earlier and study full-time, can also apply for study allowances (55.93 euros per month). PhD students who meet the requirements for obtaining a doctoral allowance, have the right to receive 383.47 euros per month. Students engaged in teacher training can apply for a special study allowance of 1,300 euros per year.

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

Students can apply for special study loans from banks. In 2012/2013, the amount for the loan per academic year was 1,917.35 euros.

Internationally recognised English-based degree programmes and shorter courses are offered by universities that have agreed on common high academic standards and support services by signing the Agreement on Good Practice in the Internationalisation of Estonia's Higher Education Institutions.

Admission to the study programmes is usually administered by the higher education institution.

The evaluation of foreign higher education qualifications and qualifications giving access to higher education is conducted by the Estonian National Academic Recognition Information Centre (Estonian ENIC/NARIC). Applicants should also prove their proficiency in the English language. The common requirement is an official result of TOEFL, IELTS or some other internationally accepted English proficiency tests.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to "ensure inclusive and equitable quality education and promote lifelong learning opportunities for all", target 4.6 specifically calls on states to "ensure

that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy". Furthermore, under target 4.4, states are called "to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life."

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

With referral to the previous report, adult education is divided into formal education, informal work-related training and retraining and popular adult education:
<https://www.hm.ee/en/activities/adult-education>

Starting from academic year 2016/2017, the providers of continuing education and training have an obligation to maintain a website to provide constantly updated information on their activities: curricula, learning conditions and training providers. From March onwards, they are also required to make their performance indicators available to all interested parties. Such information enables prospective learners and entities commissioning training to make the best informed choice. For learners to be able to claim reimbursement of income tax paid on education, to be granted study leave or to receive support from the public sector, the provider of the continuing education and training must be registered in the Estonian Education Information System (EHIS).

The Ministry of Education and Research encourages adults to return to education – the aim is to bring adults who have dropped out of basic or upper secondary school back to school and to give them an opportunity to complete their education. The projects, which received a total of more than 2.6 million euros, offer training on learning skills and additional or bridge courses on different subjects to adults returning to education; student counselling and individual guidance also play an important role. Since the objective is to make learning as flexible as possible, e-learning options and childcare services are also available.

The Ministry of Education and Research has prepared a new order for state-commissioned adult education and training to provide free trainings to more than 6,500 people across

Estonia. It includes 506 free courses provided by vocational schools and institutions of professional higher education providing vocational training.

The participation rates of adults in lifelong learning has started to increase; however, people with lower education continue to be passive when it comes to professional development. The programmes are targeted at those adults whose employability and success on the labour market will be significantly increased by the knowledge and skills acquired on the courses. Some 34,300 adults will be able to improve their professional skills on free courses between 2016 and 2018.

The literacy rate in Estonia is nearly 100%.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

With referral to the previous report, for each level of education (pre-school, basic, secondary and higher education), the state establishes requirements, called national standards of education. These are set out in national curricula which determine general objectives of the respective educational level, required content, estimated length of study period, required knowledge, skills and experience. The organisation and conduct of inspection for formal education is regulated by the Pre-School Childcare Institutions Act, the Basic Schools and Upper Secondary Schools Act, the Vocational Education Institutions Act, the Private Schools Act, the Universities Act and the Institutions of Professional Higher Education Act. The main objective of the inspection is to contribute to acquiring quality education and to ensure the efficiency and lawfulness of education and schooling activities. In Estonia there is no independent inspectorate, thus no complex, full-scale inspection is conducted. The Ministry of Education and Research establishes the priorities of inspection for each school year and according to that the county governors carry out thematic inspections (the sample includes approx. 10% of educational institutions. The Ministry carries out inspection in individual matters, for example, when an educational institution has applied for an education licence or in case of problems (complaints). In 2006, the Ministry of Education and Research established a mandatory requirement for internal evaluation in pre-primary institutions, general education institutions and vocational schools as well as changed the organisation of state inspection: the role of internal evaluation has increased and the role of the state

inspection has decreased. The information received is used for the dissemination of the best practice in educational institutions; for the training of managers and teachers of educational institutions; for the introduction of necessary changes to legislation; and for making decisions concerning education policy. Additionally, we the ministry would like to go over from thematic inspection to risk based inspection – it means to inspect schools only when there are problems. <https://www.hm.ee/en/activities/external-evaluation>

In vocational education and higher education the development of principles and procedures of external evaluation is the task of the [Estonian Quality Agency for Higher and Vocational Education](#)

[National curriculum for basic schools](#)

[National curriculum for upper secondary schools](#)

[Occupational qualification standards in vocational education](#) (additionally also vocational education standard and national vocational curricula act as standards)

[Standard on Higher Education](#)

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

Strategic focuses of teacher policy have been specified in the Estonian Lifelong Learning Strategy 2020. The strategy emphasises the need to transfer to a modern concept of learning that is focused on the learner, deems key competences important and integrates subjects and different fields; and considers teachers and heads of schools the key actors of the process. For the purposes of the strategy, teachers mean all the persons who guide learning processes and form learning environment in kindergartens, general education schools, vocational schools, higher education institutions, hobby schools, non-formal and

informal education centres, continuing education centres, open youth centres, museums and other cultural institutions. Heads of schools mean the heads of the educational institutions mentioned. The teacher's role is to support a student's development into a learner who can manage his or her own learning, who can independently cope with changes in the environment and take responsibility for his or her own development and learning. A teacher is also a person who creates connections and forms value judgements, whose task is to develop critical and creative thinking in a student, as well as analytical skills, entrepreneurship, teamwork skills and written and oral communication skills.

For the implementation of the goals specified in the strategy, measures have been provided for making the teaching profession more attractive, for reorganising continuing education of teachers and heads of schools, and for providing feedback on the performance of teachers, as well as for improving the digital competence of learners and teachers.

Implementation of the Estonian Lifelong Learning Strategy and development of academic staff takes place under the leadership of the Ministry of Education and Research, largely in the framework of the programme "Competent and Motivated Teachers and Heads of Educational Institutions" funded by the European Social Fund. Strategy 2020 provides for the development of competence centres at Tallinn University and the University of Tartu that are responsible for the development of teacher training and educational sciences. The competence centres are targeted at collecting and developing knowledge about learning and teaching, and passing on such knowledge to other educational institutions, incl. institutions of higher education.

Professional standards form a conceptual basis for the initial and continuing education of teachers; continuing education of heads and teaching staff is based on competence models.

The higher education standard sets general requirements for academic personnel.

The Estonian Education Information System includes a sub-register of teachers and teaching staff, in which teachers, teaching staff, support specialists and heads of all educational institutions involved in the provision of formal education are registered.

The professional standard for trainers of adults has been developed and awarding of professional qualifications is ongoing.

The teaching staff and management of all educational institutions works on the basis of employment contracts, with the exception of the rector of the professional higher education institution related to national defence. Many educational employees have been guaranteed a shorter working time and longer annual leave.

The basis for determining the salaries of general education school and vocational school teachers (monthly salary rate and additional payments) is the salary fund allocated to the owner of the school. Support for covering teachers' and heads' salaries is allocated to local authorities as a single amount.

A teacher's working time is calculated and a teacher is remunerated on the basis of the teacher's position. The minimum wage for basic school and upper secondary school teachers is agreed upon by the Minister of Education and Research and the representatives of local government associations, private school owners and registered associations of teachers. In the event that an agreement cannot be reached, the minimum wage will be determined by the Government of the Republic. Since 1 January 2019, the minimum wage for a basic school and upper secondary school teacher working full time is 1,250 euros per month. Preschool teachers' wage costs are covered by local government funds and for them no national minimum wage has been determined.

The minimum salary for teachers of classes for students with special educational needs and for teachers of state schools that require special educational conditions are somewhat higher.

Sources: https://eacea.ec.europa.eu/national-policies/eurydice/content/conditions-service-teachers-working-early-childhood-and-school-education-23_en,
https://eacea.ec.europa.eu/national-policies/eurydice/content/teachers-and-education-staff-23_en

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

Yes ☒ No ☐

- Please provide a brief description:

[Private Schools Act](#): This Act applies to legal persons in private law as a result of whose activities it is possible to acquire pre-school, basic or secondary education.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

[Private Schools Act, The Constitution of the Republic of Estonia](#)

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☒

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☒ Curriculum is adapted to national minority needs

☒ Teachers are trained to adapt to national minority needs

☐ Other:

- Please provide a brief description of the provisions:

[According to the Republic of Estonia Education Act](#), the objectives of education are to:

1) create favourable conditions for the development of the individual, the family and the Estonian nation, also for ethnic minorities, and economic, political and cultural life in

Estonian society and also nature conservation, within the context of the global economy and global culture;

2) shape individuals who respect and abide by the law;

3) create opportunities for everyone to engage in lifelong learning.

Please see 1.3. for further information regarding language instruction for national minorities.

Access to education to all is provided through the Constitution of the Republic of Estonia, §37.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

Among language facilities for students whose native language is not Estonian, there are different options, such as the possibility to study mother tongue two hours per week if the mother tongue (home language) of a student is different than the language of instruction of the school and if there are more than 10 students wishing to study the language; possibility to study mother tongue as foreign language, state funding is provided for week-end schools, which provide home language and culture courses for ethnic minorities.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

According to the [Constitution of the Republic of Estonia](#), § 37: Everyone has the right to education. Education for school-age children is compulsory to the extent specified by the

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

law, and is free of charge in general schools established by the national government and by local authorities.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

- ☐ Other: